

		The Court Clerk is to provide notice.
4	30-2026-01590441 Nguyen vs. McIntosh	The Court has read and considered the Defendants' Demurrer to Amended Complaint (ROA 11) and the Amended Complaint (ROA 7). California Civil Code § 1954.535 provides that an owner must provide a tenant subject to an agreement or contract with a government agency with 90 days' written notice of the termination of the contract. This California Civil Code section does not exempt a landlord from the requirements under the Tenant Protection of 2019 if it applies to the tenancy, requiring notice under the just cause provision under Civil Code section 1946.2(b) or the California Code of Civil Procedure § 1161 requirements. The Plaintiff answered 7(b) in the Amended Complaint that the Tenant Protection Act of 2019 applies and that, under 8(a), the tenancy was terminated for at-fault just cause. The 90 Day Notice attached to the Amended Complaint does not meet the legal notice requirements for a just cause termination pursuant to Civil Code § 1946.2(b) or the California Code of Civil Procedure § 1161 requirements. A Notice to Quit cannot be amended. The Court of Appeal held that when a plaintiff fails to strictly comply with the requirement under California Code of Civil Procedure section 1161, a plaintiff fails to state a cause of action for unlawful detainer. (<i>Eshagian v. Cepeda</i> (2025) 112 Cal.App. 5th 433, 457-459.) The Court SUSTAINS the Demurrer without leave to amend. The Court dismisses the complaint with prejudice. The Court Clerk is to provide notice of the Court's ruling.
6	30-2026-01542413 Christopher Paul Teague as Trustee of the Teague Family Trust dated August 5, 2010 as restated on August 17, 2018 vs. Rutledge	The Court has read and considered the Defendant Stephanie Martin Rutledge's Notice of Motion to Set Aside the June 29, 2026 Default Money Judgment (ROA 70), Declaration in Support (ROA 73), and Reply to Motion (ROA 75). The Defendant failed to provide notice and service of the Motion pursuant to California Code of Civil Procedure § 1005 on the Plaintiff. No declaration of service or proof of service is attached to the Motion to Vacate, Declaration In support or Reply to Motion. The Court of Appeal held that a litigant in propria persona is subject to the same restrictive rules of procedure as an attorney. (<i>Kabbe v. Miller</i> (1990) 226 Cal.App. 3d 93, 98.) The Court takes the motion off calendar as it was not properly noticed or served. The Court Clerk is to provide notice of the Court's ruling.
7	30-2026-01577309 Yang vs. Byun	The Court has read and considered the Defendant's Motion for Summary Judgment (ROA 39). No Opposition was filed by the Plaintiff's counsel as of 5:36 AM on September 4, 2026.

		The Court GRANTS Defendant's Motion for Summary Judgment. On July 24, 2026, the Court ordered that Defendant's Motion to Deem Requests for Admissions, Set One, Admitted be granted and that the truth of the specified matters and the genuineness of the specified documents in Defendant's First Set of Requests for Admission, served on Plaintiff through counsel of record W. Scott Ayers on June 21, 2026, be deemed admitted. In light of those admissions, Plaintiff has failed to establish a triable issue of material fact or law. Defendant, in turn, has established the affirmative defense of retaliatory eviction. Accordingly, Defendant is entitled to judgment as a matter of law, and the Motion for Summary Judgment is GRANTED. Therefore, the Court finds judgment for the Defendant, Minji Byun, for possession of the property located at 20 Rushingwing, Irvine, CA 92614, County of Orange. The Defendant is the prevailing party, and Defendant's counsel may provide a motion and accounting to the Court requesting attorneys' fees and costs, which are not to exceed \$1000 per Section 37 of the Lease Agreement. Defendant's counsel is ordered to provide notice of the Court's ruling.
8	30-2026-01579273 Gelt Oasis Exchange, LLC vs. Clark	The Court has read and considered the Motion for Summary Judgment (ROA 89), Plaintiff's Opposition (ROA 135), and Defendant's Reply In Support of Motion for Summary Judgment (ROA 139). The Court DENIES the Motion for Summary Judgment. The Court finds that triable issues of material fact and law remain. Section D(4) of the Lease, under the heading "RENT," provides: "We reserve our rights under Civil Code § 1479 to apply any payments we receive to any amounts due (whether Rent, Charges, Late Charges or any other amount) in any manner we choose, and any contrary instructions or conditions you may attempt to impose will be of no force or effect." The parties have raised material factual and legal disputes concerning Plaintiff's application of payments received under the Lease. In particular, triable issues remain regarding how Plaintiff applied the payments, the order in which the payments were applied, and whether, following that application, any remaining balance constituted unpaid rent or other fees or charges. Defendant's Reply identifies seven (7) questions and contends that Plaintiff's Opposition does not adequately address them. The record before the Court likewise does not contain dispositive evidence resolving the material issues raised by the parties. For example, the Motion does not identify evidence, such as a party admission or deposition testimony, conclusively establishing how and when the charges were applied, how Defendant's rent payment was applied, or what actions were taken following the insufficient-funds issue.